

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

Rehearing Denial

Entered July 6, 2026

The City of Norvale filed a timely petition for panel rehearing and rehearing en banc from the opinion and judgment entered June 18, 2026. The petition was circulated to the panel and to all judges in regular active service who were eligible to participate. The panel has considered the asserted tailoring and Rule 65 issues and concludes that rehearing is not warranted. No eligible judge requested a poll on rehearing en banc.

The petition does not show that the panel overlooked or misapprehended a controlling point. The opinion recognized compensation as an objective marker of an organizer-arranged presentation, considered the direct application fields, and applied content-neutral narrow-tailoring doctrine without requiring the least restrictive means. It concluded only that the district court could find preliminary entitlement on this record, not that compensation may never form part of a permit system or that Norvale must enact any alternative listed by the parties.

The opinion also addressed the limited pilot history, amendment process, fee evidence, event planning, and municipal interests. Rehearing is not a vehicle to reweigh those matters after they were fully presented. The interlocutory disposition leaves the district court free to consider additional evidence, changed administration, or a revised enactment during continued merits proceedings.

The request for panel rehearing is denied. Because no poll was requested, the request for rehearing en banc is also denied.

The remedial argument does not alter that result. The June 18 disposition affirmed preliminary-injunction entitlement but remanded for a superseding order that identifies the restrained acts with the specificity required by Rule 65(d) and makes an express, record-supported decision concerning security under Rule 65(c). The existing protection remains effective until the compliant order enters, as the opinion and judgment direct.

Maintaining protection during a focused correction does not approve indefinite wording for permanent use. It prevents a remedial gap from consuming a scheduled event while the district court performs the required tasks. The district court may act promptly, address materially changed circumstances on an appropriate record, and manage the unresolved complaint. The panel directed no particular bond amount and did not prescribe final operative language.

The June 18 opinion and judgment remain unchanged. The Court continues to exercise jurisdiction under 28 U.S.C. § 1292(a)(1), the recurring-events controversy remains live, the Guild's preliminary entitlement remains affirmed, and the remand remains limited to Rule 65(c) and 65(d) correction. Neither this order nor the later issuance of mandate will dissolve the January 23 protection by itself.

Mandate timing is governed by Federal Rule of Appellate Procedure 41. Any request for different treatment must comply with the applicable rule and be made by a proper filing. The Clerk shall provide immediate electronic notice to counsel and transmit this order to the district clerk.

Entered at the direction of the panel on July 6, 2026. The petition for panel rehearing and rehearing en banc is denied.